

Plaintiff asserts that he should be allowed to conduct discovery to seek facts to support personal jurisdiction as to these Defendants. But Plaintiff has failed to identify specific areas of inquiry he would pursue, whether any discovery efforts have been made to date, or what facts he might obtain through discovery that would support specific jurisdiction as to either of them. That request is therefore **DENIED**.

The Motions are therefore **GRANTED**. Defendants Birns and WFS are dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h).

The Requests for Judicial Notice filed as ROAs 48, 50, 124 and 130 are **GRANTED** under Ev. Code §452(d) as to the existence of the records, but not as to the truth of any disputed facts asserted therein. (*Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

The Evidentiary Objections filed as ROA 148 are **SUSTAINED** on Obj. 4 as to the legal conclusion asserted therein, but otherwise **OVERRULED**. The Evidentiary Objections filed as ROA 149 are **SUSTAINED** on Obj. 3 [legal conclusion] but otherwise **OVERRULED**.

Motion 4: The Motion to Quash is GRANTED.

Plaintiff has failed to show any basis for personal jurisdiction as to this Defendant. Plaintiff has not presented any evidence to show general jurisdiction over Mankarious, who resides in London, England. (ROA 66.) Plaintiff's claim as to Mankarious is instead entirely derivative of his claims against the Quintessentially UK Defendants. Plaintiff has therefore failed to show any basis for specific personal jurisdiction here, for the reasons discussed on Motion 1. Plaintiff has also failed to show that service for this action on Mankarious was validly effectuated, and effectively concedes that it was not.

Plaintiff asserts that he should be allowed to conduct discovery to seek facts to support personal jurisdiction as to this Defendant. But Plaintiff has failed to identify specific areas of inquiry he would pursue, whether any discovery efforts have been made to date, or what facts he might obtain through discovery that would support specific jurisdiction as to Mankarious. That request is therefore **DENIED**.

The Motion is therefore **GRANTED**. Defendant Mankarious is dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h).

Counsel for the Quintessentially UK Defendants is to give notice of these rulings.

10	Michael Bui v. Ben Elliot, et al.	Before the Court at present are the following four motions: (1) the "Motion to Dismiss" filed on 5/18/26 by Specially Appearing Defendants "Quintessentially (UK) Limited, a private UK limited company; Quintessentially Retail Limited, a private UK limited company; Quintessentially Aviation Limited, a private UK limited company; Quintessentially Covered Limited, a private UK limited company; Quintessentially Gifts Limited, a private UK limited company; Quintessentially Education Limited, a private UK limited company; Lifestyle Concierge Management Limited, a private UK limited company; Quintessentially Communications Limited, a private UK limited company; Q Worldwide Limited, a private UK limited company; C.J. Leigh (Holdings) Limited, a private UK limited company; Quintessentially Villas Limited, a private UK limited company; Quintessentially Media Limited, a private UK limited company; Quintessentially Driven Limited, a private UK limited company; Quintessentially & Co. Limited, a private UK limited company; and Quintessentially Travel Limited, a private UK limited company" (collectively here, the "Quintessentially UK Defendants") ("Motion 1" below); (2) the Motion to Quash Summons for Lack of Personal Jurisdiction, filed on 5/27/26 by Specially Appearing Defendant Ira Michael Birns ("Birns") ("Motion 2" below); (3) the Motion to Quash Summons for Lack of Personal Jurisdiction, filed on 5/27/26 by Specially Appearing Defendant WFS UK Holding Partnership LP ("WFS") ("Motion 3" below); and (4) the Motion to Quash Summons for Lack of Personal Jurisdiction and Improper Service, filed on 6/10/26 by Specially Appearing Defendant Ramsey Mankarious ("Mankarious") ("Motion 4" below). <u>Motion 1: The "Motion to Dismiss" is GRANTED.</u> The Motion seeks relief under C.C.P. § 418.10, and is thus functionally a Motion to Quash based on personal jurisdiction. A Motion to Quash is the appropriate mechanism to assert that personal jurisdiction is lacking. (C.C.P. §418.10(a)(1) ["A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her ..."].) But this Motion is effectively also a motion to dismiss, as if such motion is granted, the court may dismiss the action without prejudice as to those defendants. (C.C.P. § 581(h) ["The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10."].) When a defendant challenges personal jurisdiction on a motion to quash, the burden of proof is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court's jurisdiction over the defendant. (<i>Bolkiah v. Superior Court</i> (1999) 74 Cal.App.4th 984, 991-992.) Plaintiff has not met that burden here. In the unverified First Amended Complaint filed on 8/25/25 ("FAC"), Plaintiff asserts multiple claims based on an alleged employment
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relationship with 27 individuals and entities, referred to collectively as the "Defendants." Plaintiff alleges at ¶¶ 5 and 20 -35, and in footnote 1, that he was, at some unspecified time, employed by "the QUINTESSENTIALLY EMPLOYERS and the QUINTESSENTIALLY EMPLOYER AGENTS," and that various entity defendants are alter-egos of Quintessentially (UK) Limited. He then asserts vaguely at ¶ 63 that he "was never notified of any termination of his employment" but at an unspecified time, " was retaliatorily terminated from his employment without his knowledge." None of those unverified assertions are sufficient to meet Plaintiff's burden here.

Plaintiff's declaration filed with the Opposition (at ROA 76) fails to meet Plaintiff's burden here. Among other things, it fails to state who hired him when, what his job was, how long he worked for what entity(ies), or how he was allegedly terminated and by whom. He offers no documentation to support his claims. He asserts that he was employed by "Quintessentially (UK) Limited" in Los Angeles, but offers no context for that assertion and no supporting evidence. He asserts that he was paid through various entities but "the source of the funds was always nominally from a Quintessentially bank account," without presenting any foundation for those assertions or supporting evidence.

Plaintiff's additional evidence, presented in ROAs 115 and 165, does not cure these defects. None of the evidence presented shows that Plaintiff was actually employed by any of the UK Defendants. At most, the additional evidence presented reflects communications with individuals who were employed by Quintessentially, concerning what appear to have been separate businesses operated by Plaintiff and/or third parties.

Plaintiff has thus failed to meet his burden here.

In contrast, the Quintessentially UK Defendants have presented substantial evidence to support their claim that there is no basis to assert personal jurisdiction over them here. They assert that they are all UK entities based outside of the U.S., who do not have offices or employees in California, and that their records do not show that Plaintiff was ever employed by any of them. (See Drummond, Wilt, Goss, Simpson and Ellis Decls., at ROAs 36, 140, 142, and 144.) They have also presented evidence to show that the communications presented by Plaintiff to support his claims do not actually support the assertions he has made as to each. (See ROAs 140, 142, 144.)

Plaintiff asserts that he should be allowed to conduct discovery to seek facts to support personal jurisdiction as to the Quintessentially UK Defendants. But Plaintiff has failed to identify specific areas of inquiry he would pursue, whether any discovery efforts have been made to date, or what facts he might obtain through discovery that would support specific jurisdiction as to the Quintessentially UK Defendants. That request is therefore **DENIED**.